

CHICKASAW TRIBAL LEGISLATURE

**Permanent Resolution Number 12-22
Amendment to the Election Rules and Regulations
Declaration of an Elective Office to be Open**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, changes to the Election Rules and Regulations are needed to permit the Election Commission to declare an elective office open upon the resignation of an elected official for the purpose of calling an election to fill the vacancy.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature amends Title 8 of the Code of the Chickasaw Nation to add Section 8-212 Elective Office Vacancies, as follows:

SECTION 8-212 ELECTIVE OFFICE VACANCIES.

A. In addition to the provisions of Article XV of the Constitution of the Chickasaw Nation, persons who resign from elective office shall have their office declared vacant by the Election Commission upon official written notification from the Governor that such resignation has been received by the Governor. Such resignation must be in writing and, once received, cannot be withdrawn.

B. When the Election Commission has declared an elective office to be vacant due to a resignation, the Governor shall call for an election, without regard to the effective date of the resignation, if the elective office being vacated would not, ordinarily, be open for the regularly scheduled election. Then the Election Commission may either open the filing for such office to be voted upon at the upcoming regularly scheduled election, or, if necessary, provide for a special filing period and special election. The Governor shall call for the election by the most expedient method to fill the vacated elective office.

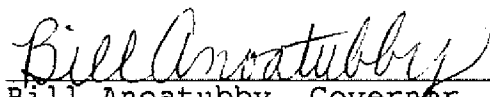
Permanent Resolution Number 12-22
Page 2 of 2

C. All rules and regulations that apply to regular and special elections shall, also, apply to elections resulting from resignations of elected officials.

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on June 16, 1995, by a vote of 10 ayes, 0 nays, 2 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: 6-19-95

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Explanation: Adoption of this resolution would enable the Election Commission to declare an Elective Office vacant upon the resignation of an Elected Official and to open the filing for the vacant office and hold an election as called for by the Governor.

Requested by: The Election Rules and Regulations Ad Hoc Committee

Presented by: Mevelyn Kirkpatrick, Chairman
Election Rules and Regulations Ad Hoc Committee